MS. LIEZEL DC. ATOLE
Project Leader

DR. RUBY RATERTA
PCIEERD

DR. RAUL G. BRADECINA
President, PSU

DR. ENRICO C. PARINGIT
Executive Director, PCIEERD

Republic of the Philippines
DEPARTMENT OF SCIENCE AND TECHNOLOGY
PHILIPPINE COUNCIL FOR INDUSTRY, ENERGY AND EMERGING TECHNOLOGY RESEARCH AND DEVELOPMENT
General Santos Avenue, Bicutan, Taguig City

MEMORANDUM OF AGREEMENT

Project Title: Establishment of ParSU – Microbiology Testing Laboratory (MTL)

PCIEERD Project No.: 9893

KNOWN ALL MEN BY THESE PRESENTS:

This MEMORANDUM OF AGREEMENT ("Agreement") is made and entered into by and between:

The **PHILIPPINE COUNCIL FOR INDUSTRY, ENERGY AND EMERGING TECHNOLOGY RESEARCH AND DEVELOPMENT (PCIEERD),** a government agency under the Department of Science and Technology (DOST) created pursuant to the approved rationalization plan in accordance with the provision of Executive Order No. 366, hereinafter referred to as the "**DOST-PCIEERD**", the Funding Agency, with principal office at 4th and 5th Levels, Science Heritage Building, Bicutan, Taguig City, Metro Manila, Philippines represented in this Agreement by its Executive Director, **DR. ENRICO C. PARINGIT;**

-and-

The **PARTIDO STATE UNIVERSITY,** with official address at **San Juan Bautista St. Goa, Camarines Sur,** represented herein by its President, **DR. RAUL G. BRADECINA**, herein referred to as the "**PSU**", for the implementation of the above-mentioned project;

WITNESSETH:

WHEREAS, the above-mentioned research and development (R&D) project hereinafter referred to as the **ParSU MTL** has been thoroughly evaluated by **DOST-PCIEERD** and was duly approved by the **PCIEERD Governing Council** in its 110th meeting on 10 May 2021 through GC Resolution / Confirmation No. 63, series of 2021;

NOW THEREFORE, for and in consideration of the foregoing premises, the PARTIES hereby agree to the following terms and conditions:

MS. LIEZEL DC. ATOLE
Project Leader

DR. RUBY RATERTA
PCIEERD

DR. RAUL G. BRADECINA
President, PSU

DR. ENRICO C. PARINGIT
Executive Director, PCIEERD

I. OBJECTIVES OF THE PROJECT

General Objectives:

The general objective of this project is to establish ParSU-MTL (Microbiology Testing Laboratory), a testing facility that will help Partido State University provide quality education, research, extension, and production services.

Specific Objectives:

1. Procure laboratory equipment needed for the establishment of ParSU-MTL;
2. Utilize procured equipment to support on- going research projects;
3. Propose researches under the ParSU-MTL;
4. Provide support to the upcoming development of Kurakding Center.
5. Published research articles in high- impact journals to disseminate research outputs in the general public;
6. Utilize ParSu-MTL for the delivery of quality instruction and train students for their research undertakings; and,
7. Provide consultation and services to clients from different industries or individuals regarding microbiology testing that will also help the laboratory up and running.

II. OPERATION OF THE PROJECT

The Project shall be undertaken by the **PSU** in accordance with the approved project proposal (made part hereof as Annex "A") and the Revised DOST-GIA Guidelines (A.O. 011 S. of 2020) and DOST A.O. 014, s. of 2019 (the DOST M&E Protocol).

III. FUNDING ASSISTANCE

The **DOST-PCIEERD** shall provide grant in the amount of **Four Million Nine Hundred Ten Thousand Pesos (P4,910,000.00)** for **twenty-four (24) months** to be expended based on the scheduled release of funds and as allocated in the approved Project Line-Item Budget (made part hereof as Annex "B"). Guidelines on the Grants-in-Aid Program as may be determined by the **DOST-PCIEERD** shall govern the implementation of the Project.

The activities, operation of books of accounts and records of the projects shall be subject to reasonable inspection by authorized representatives of **DOST-PCIEERD**. The **DOST-PCIEERD** reserves the right to discontinue the projects or its assistance at any time for cause as determined by the **DOST-PCIEERD**, to include but not be limited to, violation of the Grant Agreements, fraud or falsity in the **PSU's** warranties and representation as provided by the proponent or upon determining that the results which were obtained or reasonably expected do not justify further activity.

All income/interest derived from the program/projects, if any, and all unexpended balance shall be reported immediately and remitted to **DOST-PCIEERD** by the **PSU** after the termination of the program/projects.

IV. PROJECT DURATION

The Project shall be completed within a period of Twenty-Four (24) months and shall commence upon receipt of funds by the **PSU**.

V. FUND RELEASE AND UTILIZATION

The financial grant shall be released by the **DOST-PCIEERD** to the **PSU**, subject to applicable rules and regulations and availability of funds.

The **PSU** shall abide by the applicable rules and regulations on disbursement and utilization as mandated by the **DOST-PCIEERD** and existing government accounting and auditing rules and regulations, to include in particular but not be limited to, rules on direct and indirect costs.

VI. PROJECT PROPERTIES

Project References: Mention of above-stated project in any and all publication, literature and information material in whatever media form shall state reference to the **DOST-PCIEERD** as Funding Agency, and **PSU** as the Implementing Agency. Failure on the part of any party to comply with this provision shall be ground for written documented protest; further, repeated non-compliance with this provision by one party shall allow the aggrieved party to inform affected third parties in writing and require proper attribution through publication, with cost charged against the offending party.

Intellectual Property (IP): Ownership and utilization of IPs and Intellectual Property Rights (IPRs) resulting from the project shall be governed by the Philippine Technology Transfer Act of 2009 (Republic Act No. 10055). The **PSU** and the Project Leader acknowledge that they have read, understood and hereby agree to be bound by the provisions of the said Act. In case of conflict with other laws, rules or regulations, the said Act shall prevail.

Records of Equipment: The Property Officer/s of the **DOST-PCIEERD** and **PSU** shall maintain a complete and updated record of all equipment purchased out of the grant funds. Inventory of equipment shall be conducted by the **DOST-PCIEERD** during the implementation of the project.

Ownership of Equipment: The **DOST-PCIEERD** shall initially own all equipment, including but not limited to the fabricated equipment, under its account until it may deem fit to transfer the same to other projects or implementing institutions, subject to existing government accounting and auditing rules. The **PSU** shall be accountable for the equipment duly receipted until the physical transfer/donation or disposition of ownership, as determined by the **DOST-PCIEERD**.

MS. LIEZEL DC. ATOLE
Project Leader

DR. RUBY RATERTA
PCIEERD

DR. RAUL G. BRADECINA
President, PSU

DR. ENRICO O. PARINGIT
Executive Director, PCIEERD

MS. LIEZEL DC. ATOLE
Project Leader

Upon request, the ownership of equipment may be transferred subject to the approval from **DOST-PCIEERD**. The **DOST-PCIEERD** reserves the right to transfer ownership of such government equipment subject to existing government accounting and auditing laws, rules and regulations.

VII. ACCOMPLISHMENT AND FINANCIAL REPORTS

The **PSU** shall submit to the **DOST-PCIEERD** all technical and financial reports as mandated by the **DOST-PCIEERD**, pursuant to applicable rules and regulations. The **PSU** shall likewise acknowledge the assistance of the **DOST-PCIEERD** in relevant project-related activities.

DR. RUBY RATERTA
PCIEERD

VIII. GENERAL PROVISIONS

Amendment: This Agreement may only be amended in writing and by mutual consent of both parties.

Authority to Sign: Each person signing this agreement represents and warrants that he/she is duly authorized to sign this agreement. In the unlikely event that the person signing for the other party is not authorized to do so, the latter agrees to hold the other party/ies harmless for any cause or consequence of the absence/lack of authority to sign.

DR. RAUL G. BRADECINA
President, PSU

Arbitration: All disputes arising between and among the parties as to interpretation, operation or effect of any clause in the Agreement or any other difference between the parties shall first be resolved amicably. In case of failure, the Rules on Alternative Dispute Resolution (ADR) between national government agencies under Republic Act No. 9285 shall apply.

Indemnification: Each party shall indemnify, hold free and harmless, and defend at its own expense the other party/ies from and against all suits, claims, demands, and liabilities of any nature or kind, arising out of acts or omissions of the former, in the performance of any activity in connection with the program/project, including those that may be initiated by its employees, workers, agents, subcontractors, or by any other entity or persons against said party by reason of or in connection to the program/project.

DR. ENRICO C. PARINGIT
Executive Director, PCIEERD

Venue: The parties further agree that in case of legal action requiring court litigations that may arise in the enforcement of this Agreement, the venue of court litigation shall be in the Court of Competent Jurisdiction sitting in Taguig City only.

Separability Clause: If any part or provision of this Agreement is held invalid or unconstitutional, the other provisions not affected thereby shall remain in force and in effect.

IX. COMPLIANCE WITH LAWS AND POLICIES

The **PSU** shall comply with the provisions of the Philippine Technology Transfer Act of 2009 (Republic Act No. 10055) and its Implementing Rules and Regulations (Joint DOST-

IPO Administrative Order No. 02-2010), Guidelines on Intellectual Property Valuation, Commercialization and Information Sharing (Joint DOST-DTI-IPOPHL A.O. No. 001 s. 2012), DOST Intellectual Property Policy (DOST A.O. No. 004 s. 2015), Technology Transfer Protocol (DOST A.O. No. 009 s. 2015), Intellectual Property Management Protocol (DOST A.O. No. 004 s of 2016), Guidelines on the Constitution of the Fairness Opinion Board (FOB) and the Issuance of Fairness Opinion Report (FOR) under R. A. No. 10055 (DOST Memorandum Circular No. 003 s. of 2015), Guidelines on the Fast-Tracked Issuance of FOR under R. A. No. 10055 (DOST M. C. No. 007, s. of 2016), Adoption of the DOST Data Sharing Policy (DOST A. O. No. 003 s. of 2015) and its Implementing Guidelines, the DOST Administrative Order No. 009 Series of 2017 as amended by DOST Administrative order No. 011 Series of 2020 (Revised DOST-GIA Guidelines) and other applicable laws, rules and policies.

IN CONSIDERATION of the mutual covenant set forth above, witness our signatures this _____ day of _____, 2020, at _____, Philippines.

Funding Agency:

PHILIPPINE COUNCIL FOR INDUSTRY, ENERGY AND EMERGING TECHNOLOGY RESEARCH AND DEVELOPMENT

DR. ENRICO C. PARINGIT
Executive Director, DOST-PCIEERD

Implementing Agency:

PARTIDO STATE UNIVERSITY

DR. RAUL G. BRADECINA
SUC President III

***WITNESS*:**

LIEZEL DC. ATOLE, PSU

DR. RUBY RATERTA, DOST-PCIEERD

Certified Funds Available:

MARISSA G. DALAY
Chief Accountant, DOST-PCIEERD

MS. LIEZEL DC. ATOLE
Project Leader

DR. RUBY RATERTA
PCIEERD

DR. RAUL G. BRADECINA
President, PSU

DR. ENRICO C. PARINGIT
Executive Director, PCIEERD

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Project Leader

DR. RUBY RATERTA
PCIEERD

DR. RAUL G. BRADECINA
President, PSU

DR. ENRICO C. PARINGIT
Executive Director, PCIEERD

ACKNOWLEDGEMENT

REPUBLIC OF THE PHILIPPINES}
CITY OF TAGUIG }S.S.

BEFORE ME, A Notary Public for and in the City of TAGUIG CITY this 23 AUG 202 day of_____ personally appeared:

	Government Issued Identification	Date (DD-MM-YYYY) /Place Issued
DR. ENRICO C. PARINGIT	S0014341A	18 Mar 2019 DFA, Manila
DR. RAUL G. BRADECINA	0656586	26 Oct 2000 Legazpi City
MS. LIEZEL DC. ATOLE	10-050204176-7	2016 Naga City

Known to me as the same persons who executed the foregoing Memorandum of Agreement and they acknowledged to me that the same is their free and voluntary act and deed and that of the entities they respectively represent.

This instrument, consisting of six (6) pages, including this page whereon this Acknowledgment is written, are signed by the parties together with their instrumental witnesses on each and every page thereof.

TO THE TRUTH OF FOREGOING, witness now my hand and seal on the date and place first above written.

Doc. No. 207
Page No. 43
Book No. X
Series of 2021

RACHEL GINA W. COPANUT-PANGWI
NOTARY PUBLIC UNTIL DEC. 31, 2021
Notarial Commission Appt. No 10 (2020-2021)
2/F Pacura Bldg. #427 ML Quezon Ave., Lower Bicutan, TC
PTR No A-5063211/1-4-21, Taguig City
IBP O R No 137056/12-29-2020, RSM
MCLE Comp No VI-0019686/3-1-2019, ROLL No 61627